IN THE HIGH COURT OF JUSTICE Claim No. CL-2026-000214

BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES – COMMERCIAL COURT (KBD)

Before HHJ Pelham KC (sitting as a Judge of the High Court) on 8 May 2026

BETWEEN HARTWELL PHARMA LIMITED (Claimant) and CRYOVANCE COLD CHAIN LIMITED (Defendant)

ORDER (CASE MANAGEMENT CONFERENCE)

UPON the Case Management Conference and UPON hearing leading counsel for the Claimant and counsel for the Defendant, IT IS ORDERED that:

1. Disclosure: the parties shall give standard disclosure by list by 4pm on 26 June 2026, with inspection 14 days thereafter. The parties' disclosure shall include (without limitation) vehicle qualification and maintenance records, driver and route records and tachograph data, temperature data logs and alarm configuration records, and internal incident and CAPA records, for both consignments.

2. Witness evidence: the parties shall exchange signed witness statements of fact by 4pm on 28 August 2026.

3. Expert evidence: each party has permission to rely on the written evidence of one expert in the field of GDP cold-chain logistics and biological-product stability. Reports shall be exchanged by 4pm on 16 October 2026; experts shall meet and produce a joint statement by 13 November 2026.

4. Preliminary issue: the Defendant's application to try the enforceability of clause 11.3 as a preliminary issue is refused; that issue shall be determined at trial.

5. Trial: the matter shall be listed for trial with a time estimate of 5 days in a window commencing 18 January 2027. Costs of the CMC in the case.

Dated 8 May 2026.